Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1482
Claimant:	Jorge West
Adjuster:	Jerry Hanson

10-4-24 - Claim opened following report of a sideswipe collision during a lane change. Insured vehcile reported contact with the claimant's vehicle on the driver's side rear quarter panel. Claimant reports neck and back strain and states they were seen at an urgent care facility the same day. Claimant is not represented by counsel. Initial contact made by phone; claimant agreed to provide photos and a written statement.

10-5-24 - Received claimant's written statmeent and photographs of vehicle damage. Statement describes the other vehicle drifting into the claimant's lane without signaling. Photos show scraping along the rear passenger side and a cracked taillight lens. Claimant confirms no prior neck or back complaints in the past several years. Insured's statement obtained and consistent with the claimant's account on the lane change, though insured disputes the amount of lateral contact.

10-9-24 - Obtained urgent care records. Diagnosis listed as cervical and lumbar strain with prescribed muscle relaxants and a referral to physical therapy. No fractures or imaging performed. Claimant has begun a physical therapy schedule of two visits per week. Reviewed the scene diagram provided by the insured and noted that a witness was identified but has not yet responded to contact attempts.

10-17-24 - Sent claimant a letter explaining the claims process, the coverage limits that apply, and the option to seek legal advice should they wish. Claimant called to ask about rental car coverage and was advised of the terms on their policy. Collision repair estimate received from the appraiser and forwarded to the claimant for review. Claimant has not yet indicated agreement with the estimate.

10-25-24 - Physical therapy progress notes received and reviewed. Claimant reports improvement in range of motion but continued stiffness when driving more than thirty minutes. Witness reached by phone and confirmed seeing the other vehicle move into the adjacent lane without signaling. Claim file updated with liability assessment favoring the other driver. Next step is to review the physical therapy discharge summary when it becomes avaialble and reassess the bodily injury evaluation.

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Recorded Statement

Claim number:	C-1482
Statement of:	Jorge West
Taken by:	Jerry Hanson
Date:	9-27-24

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my name on the recording, if that's okay. You already have it on the claim.

Q: That's fine. Can you describe where the accident happened?

A: It was on a multi-lane highway in Houston, Texas, heading into the city during the commute. I was in the right lane.

Q: What were you doing right before the collision?

A: I was changing lanes to move over for an exit. I checked my mirror, saw the lane looked clear, and started to merge.

Q: What happened next?

A: The other vehicle was in my blind spot. It sideswiped the driver's side of my car. There was a loud scraping sound and my car pulled toward the shoulder.

Q: Did you see the other vehicle before the impact?

A: Not clearly. I didn't see it until it was already next to me.

Q: Did you stop at the scene?

A: Yes, I pulled onto the shoulder and stayed in the car until the officer arrived. He took information from both drivers.

Q: Where are you feeling injuries now?

A: My neck is stiff and sore, especially when I turn my head to the left. My lower back aches too, and it's worse when I sit for a long time.

Q: Have you seen a doctor or received any treatment?

A: I went to an urgent care clinic the same day. They said it looked like a neck and back strain. I've been doing physical therapy twice a week since then.

Q: Is there anything else you would like to add?

A: Only that I'm trying to get back to normal and I want the claim handled quickly so I can keep up with my bills while I recover.

Q: Thank you. This concludes the statement.

A: Thank you.